

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
ANGEL DIAZ,

Plaintiff

- against -

**THE CITY OF NEW YORK,
P.O. EDWIN VEGA (SHIELD #027670)
P.O. JOHN DOE**

Defendant.

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

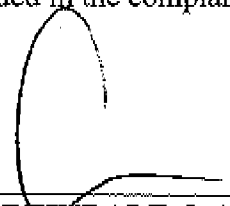
The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 10, 2018



MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

OFFICER EDWIN VEGA (SHEILD #027670)

47th PRECINCT

4111 Laconia Avenue

Bronx, NY 10466

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
ANGEL DIAZ

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK,
P.O. EDWIN VEGA (SHIELD #027670)
P.O. JOHN DOE**

Defendant.

=====X

Plaintiff ANGEL DIAZ, by his attorneys MARTINDALE & ASSOCIATES,
PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant,
respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department ("NYPD") officers mentioned herein, including P.O. Edwin Vega (hereinafter "VEGA") and P.O. John Doe (hereinafter "DOE"), were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff Angel Diaz is a citizen of the United States and a resident of Queens County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 6:00pm on June 22, 2017, in and around 3735 Merritt Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

7. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
8. On the evening of June 22, 2017, Plaintiff was in the location of 3735 Merritt Avenue in the County of the Bronx.

9. At approximately 6pm that evening, several NYPD officers including VEGA and DOE approached DIAZ with guns drawn yelling "put your hands up!".
10. DIAZ immediately complied, putting his hands up, and laying on the ground face down. There, VEGA, DOE and other NYPD officers, jointly and severally without any warrant, order or other legal process and without any legal right, arrested the Plaintiff, using excessive force in the process.
11. VEGA, DOE and other NYPD officers punched DIAZ in the arm, forcefully bent DIAZ's right arm behind his back to the extent that DIAZ heard a "pop" in his right shoulder..
12. DIAZ was inevitably handcuffed behind his back while still lying face down on the ground, and was picked up solely by the handcuffs putting further pressure on DIAZ's right shoulder, causing him to feel another "pop".
13. After arresting and handcuffing DIAZ, VEGA, DOE and other NYPD officers brought DIAZ into an awaiting NYPD jeep.
14. Diaz was driven to the 47th Precinct and left in a cell for an hour despite repeatedly informing the arresting officers he needed medical attention.
15. After an hour DIAZ was taken to Montefiore Hospital in Bronx County where he received medical attention, including but not limited to, cleaning of an ankle wound, x-rays of his shoulder, morphine shots, and a cat scan of his arm.
16. As a result of being attacked and beaten by VEGA, DOE and the other NYPD officers, DIAZ suffered a separated right shoulder, fractured ankle, right rotator cuff tear, rupture of right shoulder and other injuries.

17. In addition to suffering physical injuries to his person, Plaintiff also suffered emotional distress.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

18. Paragraphs 1-17 are incorporated by reference as though fully set forth herein.
19. In arresting DIAZ as described in paragraphs 7-17, the arresting NYPD officers were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
20. In arresting DIAZ as described in paragraphs 9-17, the arresting NYPD officers sought either a detriment to Plaintiff or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
21. As a result of Defendants' abuse of process, DIAZ sustained multiple physical injuries, as well as emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: ASSAULT

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.
23. Immediately before VEGA, DOE and the other NYPD officers arrested DIAZ as described in paragraphs 7-17, the officers intentionally placed him in apprehension of imminent harmful or offensive contact without his consent.

THIRD CAUSE OF ACTION: BATTERY

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.
25. VEGA, DOE and the other NYPD officers who arrested DIAZ, as described in paragraphs 7-17, wrongfully touched, grabbed, handcuffed and seized DIAZ in an excessive manner, subjecting him to harmful and offensive bodily contact. The arresting officers lacked legal cause to grab, handcuff, seize or touch DIAZ in an excessive manner, nor did DIAZ consent to the illegal touching, nor was the touching privileged by law.

FOURTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.
27. Upon information and belief, the officers who illegally arrested and battered Plaintiff were at all times relevant duly appointed and acting officers of the City of New York Police Department.
28. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
29. DIAZ is and at all times relevant herein a citizen of the United States and resident of Queens County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
30. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

31. On or about June 22, 2017, as described in paragraphs 7-17, armed officers of the NYPD, while effectuating the seizure of the Plaintiff, searched, seized, assaulted, and battered Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest or search warrant. The officers seized the person of the Plaintiffs during the arrest process in an unlawful and excessive manner.
32. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:
- (a) Freedom from assault to his person,
 - (b) Freedom from battery to his person,
 - (c) Freedom from illegal search and seizure,
 - (d) Freedom from the use of excessive force during the arrest process.
33. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
34. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent physical and psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

FIFTH CAUSE OF ACTION: NEGLIGENCE

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.

36. At all times hereinafter mentioned, the aforesaid abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
37. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SIXTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

38. Paragraphs 1-37 are incorporated by reference as though fully set forth herein.
39. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
40. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.
41. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Force cannot be used against an individual who does not physically resist arrest.
 - (b) An individual who sustains physical injury at the hands of the police should receive prompt medical attention.

42. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter DIAZ.

SEVENTH CAUSE OF ACTION: NEGLIGENT HIRING

43. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.
44. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff ANGEL DIAZ demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

July 10, 2018

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY 10168
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

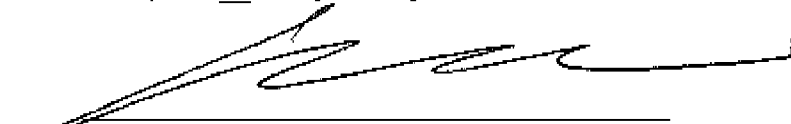
That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
July 10, 2018


ANGEL DIAZ

Subscribed and sworn to before me, this 13th day of July 2018


Notary Public

DAVID CARL HYMEN
Notary Public, State of New York
No. 02HY6258221
Qualified in Westchester County
Commission Expires March 26, 2020

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COUNTY OF THE BRONX**

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Plaintiff,

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**THE CITY OF NEW YORK
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Defendant.

SUMMONS & COMPLAINT

**Martindale & Associates, PLLC
Attorneys for Plaintiff
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**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007**

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4111 Laconia Avenue
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